

BODY OF SENIOR ADVOCATES OF NIGERIA

2025 PRE-INAUGURATION LECTURES

ABUJA

NIGERIAN JURISPRUDENCE : THE CONTRIBUTIONS AND IMPACT OF SENIOR ADVOCATES OF NIGERIA TO AND ON THE ADMINISTRATION OF JUSTICE IN NIGERIA.

I have not been called upon to address all lawyers today. Rather, this occasion is only for the very few, out of many several Nigerian lawyers who had, successfully, scaled through the rigorous screening processes set by the Legal Practitioners Privilege Committee (LPPC) for conferment on, this year, of the title of Senior Advocates of Nigeria. On this auspicious occasion let me congratulate you, each, for an outstanding feat. Out of the many legal practitioners who applied this year; only just this few of you made it. As the adage goes: many are called; few are chosen. Congratulations !

I appreciate the organisers for this opportunity I have been given to "dry clean and iron" you, the new silks, before your inauguration; just as I extend my appreciation to all concerned, including the honourable, the Chief Justice of Nigeria, and the LPPC for the job well done. The job of settling down on this few this year, no doubt, must have been an arduous and daunting task.

The title, albeit the privilege, of Senior Advocate of Nigeria (SAN) is awarded to Legal practitioners in Nigeria, who have demonstrated exceptional skill and excellence in the practice of law, and knowledge of jurisprudence. It is a prestigious one. It is the equivalent of the King's Counsel (KC) or Queen's Counsel (QC) in United Kingdom(UK). Many Nigerians heard of the Queen's Counsel, for the first time, when Chief Obafemi Awolowo hired Dingle Foot, QC, to anchor his defence in the treason trial. In Nigeria; the title, or the office, of the SAN has statutory backing in the provisions of the Legal Practitioners Act.

To whom much is given; much is expected. The privilege of being SAN comes with enormous associated responsibilities. It is not just prestigious, it raises the higher presumption that the holder is not only learned in law; he is an outstanding master of the skills of the law and

jurisprudence. In advocacy he stands out in learning and character; comportment and reasoning. Whenever he sits in the Inner Bar, cloaked in silk as the Judge is; he is an embodiment and total image of Justice. For as long as he remains in the Inner Bar he is *amicus curiae*: the friend of court, available to be called upon on by the court to render assistance on any legal or jurisprudential question. He is a Knight at law and equity, at all times, always ready to prevent infraction of the law and iniquity at the temple of justice. In administration of justice; he is expected to be the vigilante at the fountain of justice, ensuring that justice flows seamlessly, uncontaminated, to be dispensed equally and equitably. In the temple of justice he is expected to ensure that justice is not only done, it must be seen to be done. He, like Atlas, who carries the globe on his shoulders, is expected to carry on his head the significant burden of proper administration of justice. The Inner Bar has a tradition which every Senior Advocate has a duty to preserve.

At all times he plays, or he is expected to play, the role of mentor to other lawyers, particularly the up and coming, and others not privileged. In this role; the SAN provides support and guidance for the development of the profession as well as the growth of jurisprudence in the administration of justice.

Court room advocacy of SANs appears to be the main focus of the topic. That is, how the SAN, in his advocacy and representation role, has contributed to and impacted, positively or negatively, on Nigerian jurisprudence in the administration of justice. SANs typically represent clients, mostly, at the superior courts of record- the high courts and the appellate courts. Their representations are often in critical high profile cases that have far-reaching political, constitutional and legal implications.

And in those high profile cases, all eyes are on you as well, also, on the courts. You are on trial before the *judex*, and the court of public opinion that usually sits at beer parlours (the so called "Bacchus High Court"). The *judex* takes very serious exception to any attempt by any counsel to abuse the due process of the court, which in the administration of justice is viewed and taken as a reprehensible misconduct on the part of the counsel. It is worse if the misconduct was committed by an SAN. Like Caesar's wife, the SAN must always appear, and be seen, to live above board.

Just recently, in the case filed by an elder statesman, former Deputy Governor of a State, at the National Industrial Court of Nigeria (NICN) to enforce his right to be paid his withheld salaries and allowances as Deputy Governor; the Court of Appeal, affirming the decision of the NICN, ordered that the adjudged judgment sum, together with interest there on, be paid to the elder statesman. The NICN had earlier directed the State Government to pay the said judgment sum within 30 days from the date of judgment. The order was not complied with. The government, exercising its right of appeal, vested by the Constitution and having been so properly advised by their Counsel, appealed the decision and orders therein to the Court of Appeal. The appeal was heard and dismissed as frivolous. The government still refused to comply with the orders directing them to pay the judgment sum. Counseled and encouraged by the SAN, who represented them, the government purportedly filed "notice of appeal" to the Supreme Court and followed it with application for an order to stay the execution of the money judgment, in favour of the former Deputy Governor, while in contempt of the clear and unambiguous orders of the NICN, affirmed by the Court of Appeal. The relief sought in the application appears defective. The appropriate order sought should have been directed at restraining the judgment creditor from enforcing the judgment pending the determination of the appeal. Every injunctive order must be precise. An "order staying execution" is not precise.

The purported appeal to the Supreme Court, outrageously, defied section 243(4) of Constitution that provides, clearly and unambiguously, that "the decision of the Court of Appeal in respect of any appeal arising from any civil jurisdiction of the National Industrial Court shall be final". The question is: Was the Senior Advocate not embarrassingly lacking in the knowledge of section 243(4) of the Constitution; or was he just being merely mischievous in propagating the further appeal? The latter appears to be the case. The ulterior purpose and aim of the sham appeal, being ultra vires, was to frustrate the respondent, the judgment creditor, from enjoying the fruits the judgments. The history of the cause of action necessitating the suit, in the first place, corroborates underlying political motive and malice. The plaintiff/judgment creditor was removed from office on some opaque political grounds.

The Court of Appeal, in its ruling on the application for stay of execution pending further appeal to the Supreme Court, held inter alia that the right of appeal, being statutory, cannot be derived from the imagination of counsel, notwithstanding his position at the Bar, and that doing so would be an enthronement of the rule of might as against the rule of law. The

SAN, for this adjudged unwholesome infestation of administration of justice, was seriously castigated, in addition to his being ordered to personally pay the costs assessed at N3,000,000.00 to the respondent.

On the role expected of him, as SAN, the Court added that the applicant's senior counsel owed a duty, not only to his client, but also to the court and the society that: in the discharge of his duty as a senior lawyer at the Inner Bar, occupying an enviable position, is to assist the court in seeing that no man is oppressed; and that no matter how juicy the brief, his foremost duty as SAN is to protect the weak in the society. And that duty does not permit him to perpetrate injustice and oppression. It may be added: that the court, having adjudged the misconduct of the said Senior Counsel to be oppressive and reprehensible, should have gone further to recommend him to the Legal Practitioners Disciplinary Committee (LPDC) and Legal Practitioners Privileges Committee (LPPC) for further and appropriate sanctions. The egregious misconduct, as it were, was not only contemptuous; it was a foul contamination of the course of justice and the general administration of justice.

Why is it that, in EFCC matters farmed out to Senior Advocates to prosecute; the prosecutors seem to advocate for and enjoy the onerous bail terms imposed on the accused persons to satisfy in order to regain their liberties? They seem to ignore the principle that in criminal trials the constitutional presumption of innocence, until the guilt is proved beyond reasonable doubts, endures in favour of the accused. Personal liberty, being a fundamental right guaranteed by the Constitution, should not be treated in very flimsy manner. In bail matters, pending trial, it is not intended that the accused be punished, in the interim, before trial. SANs, who are expected to lead and others follow, are not to be champions in infractions of constitutional rights of citizens, particularly in human rights violations.

When big clients pay big fees, lawyers seem to lose their heads. The love of money is root of all evils, as the adage goes. It is for this reason, inter alia, that the scriptures also rhetorically teach thus: what does it profit a man to gain the world and lose his soul ?

Senior lawyers are most active and dominant in political briefs. It is in this area of practice that SANs, in most cases, throw away ethics and scruples. The win-at-all-costs and by all means mentality (now gradually becoming a character trait) deviously nudge them, most times, to undertake some capriciously outrageous submissions that ultimately

mislead the courts. These days; it is not uncommon, contrary to the Rules of Professional Conduct, to hear a very senior counsel make inconsistent legal submissions on the same or similar facts and/or issues before two different tribunals, which helps power mongers to treasonously grab and snatch power and run away with it in order to rule and govern others.

When the courts or tribunals render conflicting decisions, ably assisted and produced by the Bar, the effect is that the law and the jurisprudence on the point remain in state of confusion. In the circumstances, it hurts the legal profession more, as it becomes more difficult even for lawyers themselves, to properly and effectively advise their clients or formulate issues subsequently for proper adjudication by courts or tribunals. These circumstances neither develop any robust jurisprudence nor promote a healthy administration of justice. They are also not beneficial to both the Bar and the Bench. The inevitable casualty is the administration of justice. In any realm; where and when the law is not certain, the way is paved for impunity and lawlessness to set in. Prophet Habakkuk had lamented thus: in those days there were no laws in Israel; every body did what was right in his own eyes and justice went forth perverted. Jesus Christ must have had this in mind when he lambasted lawyers thus: Woe unto you lawyers for creating all manners of problems for mankind which you would not, yourselves, touch with a tip of your fingers!

Conducts that are obstructive of the efficient administration of justice are, generally, regarded as misconduct since the intent is to contaminate the due process of administration of justice and perpetrate miscarriage of justice. They come in various ways. For instance, when a senior advocate accepted a brief to sue, and had in fact sued, a panel of the Court of Appeal hearing an election appeal in their personal names; the ulterior purpose of which was for the justices to recuse themselves and, consequently, for the election appeal, being time fixed, to elapse by effluxion of time in favour of his client by virtue of section 285 of Constitution. The Supreme Court, taking very serious view of this conduct, a criminal ingenuity of some sort, ordered the immediate removal of the name of the subject Senior Advocate from the list of Senior Advocates of Nigeria. He was, in addition, damnified to pay hefty costs to the named Justices of the Court of Appeals as well as the other parties sued. The misconduct was maliciously contumacious: a clear intent to obstruct the due process of administration of justice. This must not be your portion, I pray.

It has to be pointed out, in clear terms: that the law, so also the law court, is no respecter of persons or status. Once the court is satisfied that the proceedings before it amount to abuse of its process; it has a duty, part of its inherent powers under section 6(6)(a) of the Constitution, to deploy its coercive powers to punish the guilty party or counsel. The Court of Appeal so held in *Okonkwo v. A.G Fed (2017) LPELR-51365(CA)*.

Election matters are sui generis. Section 285 of the Constitution enjoins appeal courts to hear and determine election appeals within 60 days; time being of essence in election matters. Courts, generally, frown at dilatory tactics employed by counsel to delay hearings. Courts will also not lend their support to mischievous antics designed to reopen concluded election matters after the time fixed by the Constitution. The Supreme Court showed its fangs, snarling at two very senior lawyers, at whose counselling, a governorship candidate and his political party brought an application for the Supreme Court to do the unthinkable: to "review" its previous judgment, as it were, on some flimsy grounds even after the prescribed 60 days. The Court came down very heavily on them for abuse of its process. They were, each, personally ordered to pay heavy costs to the respondents in deprecation and utter condemnation of their conduct.

The extant Rules of Professional Conduct for Legal Practitioners (RPC) binds every legal practitioner, including the Senior Advocate of Nigeria. By Rule 30, thereof, every lawyer appearing before a court is an "officer of the court". Accordingly, he must not do any act, or conduct himself, in any manner that may obstruct the course of justice. He shall not delay the hearing and determination of any cause, or do any such thing as shall adversely affect the administration of justice. Rule 32 further enjoins any lawyer dealing with any law court or tribunal established by law, in his professional capacity, to do so candidly and fairly. RPC also prohibits a lawyer from misleading the court.

In *Maba v. State (2020)LPELR-52017(SC)*; it was held that deliberately misleading a court was an unworthy and a dishonourable conduct to condone. In a pre-election dispute where an SAN, in spite of his attention (with proof) being drawn to the fact that the authority, he was flaunting, had been set aside, was still insistent on it. The court vehemently deprecated this egregious conduct. He was ordered to, personally, pay N5,000,000.00, assessed as costs, to indemnify each set of respondents.

Section 287 of the Constitution obligates the office of the Attorney General, as *any other authority*, to enforce judgment or final orders of law courts, notwithstanding the contrary provisions of the Sheriff and Civil Process Act (or Law). In *Aondoakaa v. Obot & ors*(202) LPEELR-56602(SC), a sitting Attorney General, a Senior Advocate of Nigeria, was found to have consistently used his office to interfere, not only in the nomination process of a political party but also in the judicial proceedings. He did everything, in abuse of his office, culminating in his writing to INEC, purporting to direct them not to obey or comply with final orders of the Court of Appeal. Firstly, when his candidate won at the trial High Court, he audaciously, under his hand, wrote to the President of the Court of Appeal asking him not to constitute any panel to hear the appeal of the aggrieved party. The appeal, notwithstanding his entreaties, was eventually heard and allowed. Thereafter, with temerity he wrote to INEC, directing them, not to obey the final orders of the court in favour of the judgment creditor. In the suit of the judgment creditor against him, for these various unwholesome antics designed to prevent the former from enjoying the fruits of his victory, he was ordered to pay damages assessed at N50,000,000.00. The order was not only affirmed on appeal; he was also referred to the Legal Practitioners Disciplinary Committee (LPDC) for investigation and appropriate action.

I have given quite a number of verifiable misconducts committed by Senior Advocates before you. In so doing, I have adopted what Polonius suggested in *Shakespeare's Hamlet: Using the indirect to find the direct*. I am telling and teaching you not to be a bad or an odious Senior Advocate, and that being one comes with a price.

The Nigerian Bar Association (NBA) was founded on the objective of promoting the rule of law and upholding professional ethics. I had earlier, in this discourse, highlighted some conducts that are antithetical to the primary objective on which the NBA was founded; whereas, ordinarily every member of the NBA, including the Senior Advocates, have the primary duty to uphold the primary objective of the NBA. Notwithstanding the efforts of some bad eggs within the profession, including the Senior Advocates, the NBA has not rested on its oars. For the 2023 national conference it adopted: "Getting It Right", as its theme. For this year, the just concluded 2025 conference, the more robust theme was "Stand Out, Stand Tall". The point remains that no lawyer, professionally and legitimately, can stand tall in infamous conducts. Accordingly, as each of you, the new distinguished silks, now stands out in the profession as well

as the community; you must get it right also in practice, the rule of law and the proper administration of justice.

The 1999 Constitution, as the ground norm, declares its own supremacy and the supremacy of the rule of law in the governance of the realm in section 1 thereof. The Federal Republic of Nigeria and every part thereof shall not be governed by any other means, except in accordance with the provisions of the constitution. In the 1986 locus classicus: *Military Governor of Lagos State v. Ojukwu (1986) 1 NWLR (pt 18) 621*; Chief F.R.A Williams, SAN, in a major contribution, among many others, to our jurisprudence, moved the Supreme Court to clarify what the rule of law entails. That is, that the Nigerian constitution is founded on the rule of law, the primary meaning of which is that every thing must be done according to law. And it also means that government must be conducted within the framework of recognised legal rules and principles which restrict discretionary powers. In other words, no individuals or authority have the right to take laws into their own hands.

To the credit of the body of learned Senior Advocates, the outcome of the *Ojukwu's case* was clearly the case of thorough research, industry and resourcefulness. This accords with Japanese motivational advert: good thinking, good product.

At all times, the duty of the Senior Advocate includes helping the court to arrive at good and just decisions as well as proper interpretation of provisions of the constitution and other statutes. Section 233(5) of the extant Constitution, on its face, seems to vest the right of appeal to the Supreme Court on just anyone who was a party to the decision appealed from the Court of Appeal. In *Mobil Producing Nigeria Unlimited v. Monokpo (2003) 18 NWLR (pt 852) 346*; the right was held to vest only on the party against whom the judgment was rendered and who was aggrieved thereby. This landmark interpretation of section 233(5) of the Constitution was in consequence of L.E. Nwosu's preliminary objection and the reply of Chief Afe Babalola, SAN, there to. The decision checkmated avalanche of appeals to the Supreme Court.

In administrative law, as also in practice and procedures; locus standi or the standing to sue in law had been a nagging issue. With time we moved away from the austere principle, in *Olawoyin v. A.G Northern Nigeria (1961) All NLR 269*, that insisted that a citizen has no *locus standi* to challenge a government policy unless he established, by his pleading, that he was in imminent danger of his coming into direct conflict

with the policy; or that there had been any real or direct interference with his business or other activities. The trend has now shifted: Every Nigerian, owing the duty of being his brother's keeper, has a standing to sue and ensure that the law transgressor is prosecuted: *Fawehinmi v. D P P, Lagos (1987) 12 SC 136*; every citizen has duty to ensure that the nation is properly governed in accordance with laws properly and validly made in accordance with the constitution: *Fawehinmi v. I B B (2003) FWLR (pt 146) 835*; once the defendant is shown to be transgressing the law, the citizen, including a non-governmental organisation (NGO), has the standing to sue for redress that benefits the general public or community: *Centre For Oil Pollution Watch v. NNPC (2018) LPELR-50830(SC)*. In all these cases the contributions of senior lawyers, in the development of law and jurisprudence, were enormous. In the *The Centre For Oil Pollution Watch*, the Supreme Court invited several Senior Advocates as *amici curiae* to help it reach the decision it did.

Learned gentlemen at the Bar, in a few days from now your levels would have changed: from ordinary lawyers to Senior Advocates of Nigeria. At that station all eyes will be on you. To who much is given, I repeat, much is expected. Every lawyer is presumed to know the law. But the Senior Advocate, a distinguished lawyer, is further presumed to be the best amongst lawyers in both learning and character. The society expects you to positively promote the cause of justice, in the best ethical practices, that is impactful on the administration of justice. Promoting any cause that ultimately results in miscarriage of justice, bad government and anarchy would be antithesis of the rule of law. You are expected to promote the ethics of the legal profession and practice. You, therefore, cannot renege. It will be calamitous, not only to your person but also to the polity and its body of laws and ethics, if you did. This is the charge to you to keep and bear. Thank you. Remain blessed.

Justice Ejembi Eko, JSC(rtd)
Abuja